

25SMCV00389 25SMCV00389

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-16

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The court will DENY the application. Plaintiff is correct that if plaintiff can make out a showing that plaintiff cannot afford arbitration, then defendant must either front the cost to the extent plaintiff cannot afford it or must forego arbitration. When plaintiff asked defendants to front the costs, defendants said no.

Plaintiff now seeks to vacate the order compelling arbitration on the basis that plaintiff cannot afford it. Plaintiff is also seeking to file the financial information under seal. What plaintiff seeks is an order moving the order compelling arbitration—now set for December 14, 2026—to an earlier date because until then plaintiff states that there is no forum to pursue this case at all.

While the court sympathizes with plaintiff, there is no exigency here. Plaintiff does not have any forum at all until the motion is heard (assuming plaintiff is right on the merits), but that does not seem like an irreparable injury. Sadly, the court's calendar got a bit jammed up due to an illness and a vacation. The calendar ought to resume to about 2 months between filing and hearing shortly, but it is true that at the moment it is long. The court apologizes for the delay, but absent exigent circumstances not shown here, the court must DENY the motion.

The court will say this.

If plaintiff has provided defendants with the documentary evidence that plaintiff cannot afford the arbitration, and if the court finds that to be compelling, the court is likely to take defendants' refusal to front the cost as their final answer, meaning that the only remedy available will be to vacate

the order compelling arbitration. Of course, that is a lot of "ifs," and the court makes no statement as to what it will do when it reads the various moving and opposing papers.

The court will not hear argument on this matter.